

AS INTRODUCED IN LOK SABHA

Bill No. 15 of 2006

THE CONSTITUTION (ONE HUNDRED AND FIFTH
AMENDMENT) BILL, 2006

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BILL

further to amend the Constitution of India.

BE it enacted by Parliament in the Fifty-seventh Year of the Republic of India as follows:—

1. This Act may be called the Constitution (One Hundred and Fifth Amendment) Act, 2006. Short title.

2. In article 164 of the Constitution, in clause (1), in the proviso, for the word “Bihar”, the words “Chattisgarh, Jharkhand” shall be substituted. Amendment of article 164.

STATEMENT OF OBJECTS AND REASONS

Proviso to clause (1) of article 164 of the Constitution provides that there shall be a Minister in charge of tribal welfare who may in addition be in charge of the welfare of the Scheduled Castes and backward classes or any other work in the States of Bihar, Madhya Pradesh and Orissa.

2. The new States of Chhattisgarh and Jharkhand came into being with the enactment of the Madhya Pradesh Reorganisation Act, 2000 and the Bihar Reorganisation Act, 2000, with effect from 1st November, 2000 and 15th November, 2000, respectively. Consequent upon the creation of the State of Chhattisgarh and Jharkhand, a sizable portion of the Scheduled Areas of the erstwhile State of Madhya Pradesh stands transferred to Chhattisgarh and the entire Scheduled Areas of the former Bihar State stand transferred to the newly formed Jharkhand State and the Scheduled Areas were redefined as per the Scheduled Areas (States of Chhattisgarh, Jharkhand and Madhya Pradesh) Order, 2003 (C.O. 192). Further, as per census figures of 2001, the percentage of the Scheduled Tribes population to total population in the four States are as follows:—

Name of the State	Percentage of the Scheduled Tribes population to total
(i) Bihar	0.9
(ii) Jharkhand	26.3
(iii) Chhattisgarh	31.8
(iv) Madhya Pradesh	20.3

3. As there are no Scheduled Areas in Bihar now and the fraction of population of the Scheduled Tribes is very small, it is proposed to exclude Bihar from the purview of the said proviso and also proposed to extend the provisions of clause (1) of article 164 to the newly formed States of Chhattisgarh and Jharkhand.

4. This Bill seeks to achieve the above objects.

NEW DELHI;
The 20th January, 2006.

SHIVRAJ V. PATIL.

ANNEXURE

EXTRACT FROM THE CONSTITUTION OF INDIA

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164. (1) The Chief Minister shall be appointed by the Governor and the other Ministers shall be appointed by the Governor on the advice of the Chief Minister, and the Ministers shall hold office during the pleasure of the Governor:

Other provisions as to Ministers.

Provided that in the States of Bihar, Madhya Pradesh and Orissa, there shall be a Minister in charge of tribal welfare who may in addition be in charge of the welfare of the Scheduled Castes and backward classes or any other work.

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(Shri Shivraj V. Patil, Home Minister)